

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #13	CCRB Case #: 201901448	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/19/2019 10:22 AM	Location of Incident: In front of 191-199 Parkside Avenue	18 Mo. SOL 4/5/2021	Precinct: 70		
Date/Time CV Reported Tue, 02/19/2019 9:26 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/19/2019 9:26 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Tyrese Guerrier	29099	936712	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rafael Sanz	05702	934276	CW T TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Tyrese Guerrier	Abuse: Police Officer Tyrese Guerrier threatened to issue a summons to § 87(2)(b)	A . Unsubstantiated

Case Summary

On February 19, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On February 19, 2019, § 87(2)(b) was pulled over by Police Officer Tyrese Guerrier and Police Officer Rafael Sanz of the 71st Precinct. PO Guerrier issued § 87(2)(b) a summons for § 87(2)(b). As PO Sanz was driving away, he accidentally crashed his patrol car into § 87(2)(b)'s vehicle. PO Guerrier asked § 87(2)(b) if he wanted an accident report and § 87(2)(b) replied that he did. PO Guerrier told § 87(2)(b) that if he wanted an accident report, he would be issued a second summons (**Allegation A – Abuse of Authority, unsubstantiated**).

Body Worn Camera footage was obtained; however, it only captures the initial car stop and does not capture the point in time during the incident when the threat of arrest is alleged to have occurred.

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Tyrese Guerrier threatened to issue a summons to § 87(2)(b)

It is undisputed that PO Guerrier and PO Sanz pulled § 87(2)(b)'s vehicle over and ordered him to provide his driver's license and registration, but not his insurance card. PO Guerrier issued § 87(2)(b) a summons for § 87(2)(b). After the car stop, PO Sanz accidentally crashed his patrol car into § 87(2)(b)'s van. It is further undisputed that after the accident, § 87(2)(b) received a second summons for § 87(2)(b).

§ 87(2)(b) testified that after the car accident, PO Guerrier asked him if he wanted an accident report, and told him that if he did, he would receive a second summons. PO Guerrier did not specify what the summons would be for, nor did he yet know that § 87(2)(b)'s insurance card was expired. § 87(2)(b) told PO Guerrier that he wanted an accident report. PO Guerrier ordered § 87(2)(b) to produce his license and registration again, and this time, to also produce his insurance card. § 87(2)(b) provided his documents, including his insurance card, which was expired. PO Guerrier issued § 87(2)(b) a second summons for § 87(2)(b).

§ 87(2)(b) (Board review 01)

PO Guerrier denied telling § 87(2)(b) that if he wanted an accident report, he would issue § 87(2)(b) a second summons. PO Guerrier did not ask § 87(2)(b) if he wanted an accident report, because an accident report is required anytime a police is involved in an accident. PO Guerrier explained to § 87(2)(b) that since an accident report was mandatory, and he needed to include § 87(2)(b)'s insurance information on the accident report, he had also to issue § 87(2)(b) a summons for § 87(2)(b). (**Board Review 02**)

PO Sanz did not recall if PO Guerrier threatened to summons § 87(2)(b). He said that neither he nor PO Guerrier typically request insurance cards during car stops because they do not believe that it is necessary to do so. (**Board Review 03**)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. **(Board Review 04)**
- PO Guerrier has been a member-of-service for 14 years and has been a subject in seven additional CCRB complaints, none of which have been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of May 18, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint **(Board Review 05)**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date